

because TSBs are routinely issued to dealers to help diagnose and repair typical complaints.” (*American Honda Motor Co., Inc. v. Super. Ct.* (2011) 199 Cal.App.4th 1367, 1378).

Plaintiffs cite *Santana v. FCA, US, LLC* (2020) 56 Cal.App.5th 334, 345 (*Santana*) and *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 844 (*Dhital*) to support their contention that Ford’s pre-sale knowledge is a question of fact that cannot be resolved on summary judgment. *Santana* is unavailing for Plaintiffs because the *Santana* court expressly focused on evidence dated prior to the plaintiff’s purchase of his vehicle. (*Santana, supra*, 56 Cal.App.5th at p. 345 [“Santana purchased his vehicle in November 2011. The focus of our inquiry, therefore, is what the evidence disclosed regarding Chrysler’s knowledge of the defect prior to November 2011.”]). Here, Plaintiffs have produced no evidence that preexisted the May 20, 2020 purchase of the Subject Vehicle. And *Dhital* concerned a demurrer, rather than a motion for summary adjudication. (*Dhital, supra*, 84 Cal.App.5th at pp. 832-833).

Given the foregoing, the court grants Ford’s motion

V. CONCLUSION

Based on the foregoing, the Court GRANTS Ford’s motion for summary adjudication of the fifth cause of action for fraudulent concealment – inducement. The Court will prepare the formal Order.

Calendar Line # 4

Case Name William Backstrand et al vs Vincent Braga et al

Case No. 25CV456790

Motion for Terminating Sanctions

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

This case stems from a motor-vehicle accident on January 27, 2023 at the intersection of Webster and Tennyson Avenue in Palo Alto. Plaintiffs William Backstrand and Alden Backstrand (collectively “Plaintiffs”) filed a Complaint on January 17, 2025 against the Defendants Vicent Braga and Bethany Kay (collectively “Defendants”).

B. RELEVANT PROCEDURAL BACKGROUND

On April 9, 2026, the Court (Hon. Jose Franco) heard Defendants Motion to Compel Responses to Interrogatories and Demand for Inspection and Request for Monetary Sanctions against the Plaintiffs. Defendants assert that on February 24, 2025, it served Plaintiffs with Form Interrogatories (“FROG”) (Set One), Special Interrogatories (“SPROG”) (Set One), and Demand for Inspection (Set One), and request for sanctions. No opposition papers were filed by the Plaintiffs. After the hearing, the Court granted the Defendants’ motion to compel answers to FROG, SPROG, and Demand for Inspection, set one, and ordered Plaintiffs to served verified answers within 20 days. The Court granted the Defendants’ motion for sanctions, and awarded sanctions in the amount of \$780.00, which the Plaintiffs were ordered to pay within 30 days. The formal Order was executed on May 6, 2026 by the Honorable Franco and filed on May 7, 2026.

C. PRESENT MOTION

On July 8, 2026, Defendants filed this motion for terminating sanctions. The motion was accompanied by a proof of service indicating electronic service to Plaintiffs’ counsel on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 14, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of

Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court carefully reviewed the following: notice of motion and memorandum of points and authorities (totaling 6 pages); and Declaration of William Coke and attached Exhibits A-B (20 pages); Reply brief (totaling 3 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2023.030, subdivisions (a) through (e), the court is authorized, after notice and an opportunity for hearing, to impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: monetary sanctions, issue sanctions, evidence sanctions, terminating sanctions, and contempt. Code of Civil Procedure, section 2023.010, subdivision (g) provide that a misuse of the discovery process includes evasive responses to discovery. (Code Civ. Proc. § 2023.010(f)). “It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion [to deem admitted the truth of the matters specified in the requests for admission].” (Code Civ. Proc., § 2033.280, subd. (c)).

“The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. [Citation.]” (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992; *J.W. v. Watchtower Bible and Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1169). If a lesser sanction fails to curb misuse, a greater sanction is warranted. (*Doppes, supra*, 174 Cal.App.4th at p. 992). “Discovery sanctions ‘should be appropriate to the dereliction, and should not exceed what is required to protect the interests of the party entitled to but denied discovery.’” (*Id.*).

“But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (*Id.*, quoting *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279–280); *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 702, quoting *Doppes* and *Mileikowsky*). The court should consider the totality of the circumstances, including conduct of the party to determine if the actions were willful, the detriment to the propounding party, and the number of formal and informal attempts to obtain discovery. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246).

Pursuant to Code of Civil Procedure section 2023.010, “the court shall impose a monetary sanction. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code of Civ. Proc. §§ 2023.010 and 2031.300).

III. ANALYSIS

Here, Defendants seek terminating sanctions against Plaintiffs for failure to comply with Court orders. Defendants assert that initial written discovery, including FROG, SPROG, and Demand for inspection were served on Plaintiffs on February 25, 2025. (Motion, p. 3; Declaration of Coke, ¶ 4). Responses were due within thirty days. Defense counsel asserts he has attempted to meet-and-confer with Plaintiffs’ counsel from April 22, 2025 through June 19, 2026. (Declaration of Coke, ¶ 7; Exhibit A). The Defendants filed a motion to compel discovery and sanctions on June 17, 2025. On April 9,³ 2026, the Court granted the motion to compel and awarded sanctions against the Plaintiffs. Plaintiffs were ordered to provide verified responses to initial discovery within 20 days and pay sanctions within 30 days. The Order was filed on May 7, 2026. (Exhibit B attached to the Declaration of Coke, ¶ 9).

³ The Court notes the motion to compel was heard on April 9, 2026. The Deflation of William Coke states that the motion was heard on April 19, 2026 (Declaration of Coke, ¶ 8-9, and 13), which the Court notes is in error.

To date no responses to the written discovery were served and sanctions have not been paid. (Motion, p. 3-4). Plaintiffs' counsel have not responded to defense counsel's attempts to meet-and confer. (*Id.*).

Defendants emphasize that trial is set in this matter for December 14, 2026, and without written discovery responses, Defendants cannot determine the claimed injuries, medical providers, or damages that the Plaintiffs seek arising from this motor vehicle incident. (Declaration of Coke, ¶ 4). Written discovery would precede depositions of both Plaintiffs. (Motion, p. 4). Defendants assert that it is severely prejudiced in defending against any claims asserted against them. (*Id.*).

Finally, Defendants argue that Plaintiffs failures to provide written responses or pay sanctions as ordered by the Court, demonstrated “. . . repeated and willful failure to participate in the discovery process” or in the prosecution in the case, which merits dismissal of the action. (*Id.*, at p. 5).

Defendants also emphasize in its reply brief, that Plaintiffs failed to file Opposition papers, which is an admission that the motion is meritorious. (Reply, p. 2).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 14, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court finds that the Defendants have met its burden of showing that he plaintiff has not complied with the court orders and discovery. Thus, the Court finds that monetary sanctions are appropriate given Plaintiffs refusal to comply with court ordered discovery regarding verified responses to FROG, SPROG, and Demand for Inspection, set one, and failure to pay the \$780.00 previously imposed by Judge Franco on April 9, 2026. The responses were due within 20 days and the payment of sanctions were due in 30 days.

It has been more than three months since the responses and sanctions were due. This is undue delay. Trial is set in approximately four months and failure to provide discovery may result in terminating or evidentiary sanctions. The court notes that discovery statutes evidence an incremental approach regarding evidentiary and monetary sanctions. (*Doppes, supra*, 174 Cal.App.4th at 992). The Court takes into consideration the totality of the circumstances and attempts to curb noncompliance while attempting to impose less severe sanctions to produce compliance. (*Mileikowsky, supra*, Cal.App.4th at 279–280).

Accordingly, at this time the Court will decline to impose terminating or evidentiary sanctions. The Court will award sanctions. However, Plaintiffs are admonished to comply with Court orders and discovery process, further refusal to comply with either may result in evidentiary or terminating sanctions.

IV. SANCTIONS

Defendants seek sanctions against Plaintiffs for fees and costs associated with filing this present motion. Defense counsel seeks compensation for two hours of work expended on preparing the motion at the hourly rate of \$200.00. Defense counsel also seeks an additional hour of work at the same hourly rate in anticipation of appearing for the motion. Defendants also seek \$60.00 in costs for filing fees. In total, Defendants seek \$660.00 in sanctions.

The Court will award the full amount of time expended on preparing for the motion of two hours at the requested hourly rate of \$200.00 as well as the \$60.00 in Cost. Defendants motion for sanctions against Plaintiffs is GRANTED in the amount of \$460.00.

V. CONCLUSION

Based on the foregoing, and the motion being unopposed, the motion for terminating and evidentiary sanctions is DENIED without prejudice at this time.

The motion for monetary sanctions in the amount of \$460.00 in favor of Defendants and against Plaintiffs is GRANTED.

Plaintiffs are ORDERED to Comply with discovery responses as ordered on April 9, 2026 (formal Order on May 7, 2026), and provide responses within ten (10) days of this hearing.

Plaintiffs are ORDERED to pay the \$460.00 in sanctions in this motion, as well as the \$780.00 in sanctions previously ordered by the Court on April 9, 2026. The total sanction amount of \$1,240.00 is to be paid within ten (10) days of this hearing.

The Court will prepare the formal Order.

Calendar Line # 5

Case Name Monica Ramos et al vs Angela Pollard, MD et al

Case No. 25CV462475

Motion for Leave to File

Before the court is plaintiffs Rocco Ramos, Monica Ramos, and Richard Ramos's motion for leave to file third amended complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

According to the second amended complaint ("SAC"), on March 1, 2023, plaintiff Monica Ramos ("Monica"), sought prenatal care for an unborn child, plaintiff Rocco Ramos ("Rocco") on October 6, 2023.⁴ (SAC, ¶ 36). Prenatal care was rendered through Rocco's birth by gynecologist and obstetrician, defendant Angela Michelle Pollard, M.D. ("Dr. Pollard") and her practice groups/ corporations. (*Ibid.*). Dr. Pollard was assisted by Christine Kulle, NP ("Kulle"), among other individual defendants. (*Ibid.*).

Rocco was born with a birth defect called arthrogryposis multiplex congenita and quadriplegic cerebral palsy, both of which are incurable, non-progressive conditions that cause lifelong disability and special needs. (SAC, ¶ 42). Had Monica been given any information that her unborn son had any sort of fetal anomaly as early as May 5, 2023 to make an informed decision, she would have elected to have a second-trimester surgical abortion for pregnancy termination due to fetal anomalies. (*Ibid.*).

On September 19, 2025, plaintiffs Rocco, Monica, and Richard Ramos (collectively, "Plaintiffs") filed the operative SAC against various individuals and entities, including Dr. Pollard, Angela Michelle Pollard, M.D., Inc., Above Parr Women's Center, and Kulle (collectively, the "Pollard Defendants"), among others.

⁴ The court refers to the plaintiffs by their first names for purposes of clarity. No disrespect is intended. (See *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1136, fn. 11).